

AGNIFILO INTRATER

December 19, 2025

By ECF
The Honorable Margaret M. Garnett
U.S. District Judge
Southern District of New York
40 Foley Square
New York, N.Y. 10007

Re: *United States v. Mangione*, 25 Cr. 176 (MMG)

Dear Judge Garnett:

Later today, counsel will be filing a reply memorandum of law in support of Mr. Mangione's motions challenging the constitutionality of the death penalty, moving to dismiss counts three and four and moving to suppress evidence and statements. Although this Court's individual rules limit reply memoranda of law to 3,500 words, counsel respectfully requests permission to file an oversized brief so that counsel can adequately address these various issues in one reply.

We have spoken with the government, and they have no objection to our request. Thank you for your consideration.

Respectfully submitted,



Karen Friedman Agnifilo
Marc Agnifilo
Jacob Kaplan

cc: Gov't Counsel (via ECF)
Moskowitz Colson Ginsberg & Schulman (via ECF)